

State vs Prem Chand on 5 December, 2025

IN THE COURT OF MS.SHEFALI BARNALA TANDON,
ADDITIONAL SESSIONS JUDGE-05, WEST,
TIS HAZARI COURTS, DELHI.

CNR No. DLWT01-006153/2020
Sessions Case No. 270/2020
FIR No. 82/2020
PS - Parliament Street
Under Section 302 IPC

State

Vs.

Prem Chand
S/o Shri Ram Narayan,
R/o Village Asother, PO Ram Nagar Kau,
District Fatehpur, UP.

Date of Institution : 17.10.2020

Date of Committal : 01.12.2020

Charge framed Under Section : 302 IPC

Date of conclusion of final
arguments and reserving
judgment : 24.11.2025

Date of Pronouncement of
Judgment : 05.12.2025

Final Judgment Accused is convicted for the
offence under Section 302 IPC.

Case No. 270.2020

State v. Prem Chand

FIR No. 82/2020

JUDGMENT

Page 1 of 47

PS - Parliament Street

Brief Facts of the case:

1. Accused Prem Chand has been facing trial for the Charge under Section 302 IPC for committing murder of Justin @ Jaswant S/o Martin with bricks and hammer on 18.07.2020 at about 1:00 p.m. in a Juggi at Rajpath Marg, behind Rashtriya Abhilekhagar Building, New Delhi.

Case of the Prosecution; registration of the FIR and investigation conducted:

2. As per the prosecution, on 18.07.2020, on receipt of GD No. 53A regarding dead body of a labour found inside a juggi, SI Richhpal alongwith Ct. Saurabh went to the spot i.e. Behind Rashtirya Abhilekhagar Building, Rajpath Park, New Delhi.

Considering the seriousness of the matter, IO/Inspector Ajay Karan Sharma along with SI Devendra, I/C PP Boat Club, SI Manish, other staff and Senior Officers also reached there. It was found that the jhuggis were temporarily built up by the contractor to accommodate the labours working at the road repairing sites near Vijay Chowk and Rajpath. On reaching the spot, a lot of blood was found scattered on the floor inside the jhuggi and a dead body of a male about 40-45 years was found face down, partially hidden below the bed, and covered with mat. There were brutal multiple injuries on State v. Prem Chand FIR No. 82/2020 PS - Parliament Street the face & head, due to which the face was disfigured badly and lot of blood had oozed out of the injuries and scattered on the floor. In the adjacent jhuggi, a lot of blood and broken glasses of a beer bottle having blood stains were found. Also, a blood stained half- brick was found. The name of the deceased was found to be Justin @ FAN Jaswant s/o Martin, who was worker in the road repairing site. On cursory enquiry, it was found that during the afternoon, he had a quarrel on some issue with his neighbour Prem Chandra S/o Ram Narayan R/o Village Asother Distt. Fatehpur, UP, who is also a labour at the same site and both had assaulted each other, the alleged Prem Chandra also had injuries on his head and he had absconded from the spot.

3. Thereafter, message was sent to call the Mobile Crime Team on the spot and SI Richhpal and other staff were deputed to remain on the spot and get the inspection done and lift the exhibits. The body of the deceased was sent to RML Hospital Mortuary through Ct. Saurabh No. 2413/ND for preservation. The deceased had been declared as 'Brought Dead' by the Doctor vide MLC No. E/121106/360000/20.

4. The Beat Staff was immediately sent to apprehend the accused person. In the meantime, the Mobile Crime Team consisting of Incharge/ASI Puran Ram, Incharge, Photographer/HC Ravinder and others reached the spot and the place of occurrence was inspected and photographed. After completion of inspection, IO State v. Prem Chand FIR No. 82/2020 PS - Parliament Street recorded the statements of Mobile Crime Team Staff and SI Richhpal had lifted exhibits from the spot.

5. Thereafter, IO along with SI Richhpal and other police staff returned to police station. SI Richhpal got the statement of eye- witness Santosh Kewar stating that he is also residing behind Rashtriya Abhilekhagar Building, Rajpath Park, New Delhi and works as labourer. He is neighbour of Jaswant @ Justin and Prem Chand, who is residing next to him. They all work together and on 18.07.2020, he went to work and Jaswant and Premchand were in their respective jhuggis. He further stated that

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6. On the statement of complainant, the present case bearing FIR No. 82/2020, under Section 302 IPC was registered and investigation was conducted. During investigation, IO prepared site plan and arrested accused. On 19.07.2020, accused got recovered the blood stained hammer used in commission of murder from the State v. Prem Chand FIR No. 82/2020 PS - Parliament Street nearby jhuggi. IO prepared its sketch and seized after converting it into a pullanda.

7. Postmortem upon the body of deceased was conducted vide PM No. 42020 and thereafter his body was handed over to the cousin of deceased. As per PM report, the cause of death is 'Cranio-cerebral damage and its complications consequent upon blunt force impact to head region as a result of injuries No. 1, 23, 3 and 6 which collectively sufficient to cause death in ordinary course of nature."

8. The weapon of offence i.e. Hammer and pieces of bricks were deposited with the malkhana. Exhibits were sent to the FSL for expert opinion. Thereafter, on completion of investigation, chargesheet for the offences punishable under Section 302 IPC was filed against accused Prem Chand before the concerned Court.

9. During trial, supplementary chargesheet qua FSL result has been filed. As per the said FSL result, the injuries mentioned in the postmortem report of the deceased, can be inflicted by the weapon of offence i.e. blood stained bricks and hammer and sufficient to cause death of the victim. FSL report further stated that DNA Profile generated from blood on gauze of deceased is similar with the DNA profile generated from bricks and hammer.

Charge:

10. Charge for the offences punishable under Sections 302 IPC was framed against accused Prem Chand by the Ld. Predecessor State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Court on 14.01.2021, to which he pleaded not guilty and claimed trial.

THE TRIAL Prosecution evidence:

11. To bring home the guilt of the accused, the prosecution had examined 16 witnesses in total, which are PW-1 ASI Hari Singh (Duty Officer), PW-2 HC Ravinder Kumar (Photographer, Crime Team), PW-3 Sh. Ram Pratap (Neighbour/Complainant), PW-4 SI Richhpal Singh (Witness of investigation), PW-5 Inspector Mahesh Kumar (Witness of investigation), PW-6 HC Saurabh Chaudhary (Witness of investigation), PW-7 Dr. Sachin Mittal (Conducted the postmortem examination of deceased), PW-8 Dr. Vinod Kumar KN (Conducted the postmortem examination of deceased), PW-9 Dr. Srishti Chandra (collected blood samples of deceased), PW-10 SI Puran Ram (Incharge Mobile Crime Team), PW-11 Inspector Devender (Witness of investigation), PW-12 Inspector Manish Chaudhary (Witness of investigation), PW-13 Inspector Subhash Chand (IO qua filing of supplementary chargesheet), PW-14 HC Khemchand ((Witness of investigation), PW-15 Inspector Ajay Karan Sharma (Investigating Officer) and PW-16 Dr. Suminder Kaur (FSL Expert). The relevant portion of their testimony is discussed in the succeeding paragraphs.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

12. PW-1 ASI Hari Singh, Duty Officer had proved the copy of present FIR and certificate under Section 65 B of the Indian Evidence Act as Ex.PW1/1 and Ex.PW1/2 respectively. 12.1 No cross examination was conducted by the defence despite opportunity given.

13. PW-2 HC Ravinder Kumar, Photographer in Mobile Crime Team had deposed that he had accompanied ASI Puran to Park behind Rashtriya Abhilekhagar Building, Rajpath. There were two jhuggies of tin. In Jhuggi No. 2, one dead body was lying under a bed (Takhat). The body was on its stomach and the head of the body was protruding from under the takhat. He had clicked the photographs of the dead body and scene of crime. He further deposed that blood was also noticed in Jhuggi No. 2 and he also took photographs of jhuggi No. 1. He further deposed that there were two half pieces of bricks lying near the gate of Jhuggi No. 2 and the brick pieces had blood stains and hair on them. He also took photographs of those brick pieces. He further deposed that he also videographed the scene of crime and on returning office, he transferred those images and video in official computer and there were total 32 photographs clicked. The witness proved those photographs as Ex.PW2/1 to Ex.PW2/32 and also certificate under Section 65B of the Indian Evidence Act as Ex.PW2/33. 13.1 No cross examination was conducted by the defence despite opportunity given.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

14. PW-3 Sh. Santosh, Public witness deposed that he was residing in jhuggies behind National Archives on Janpath Road and there were 05 jhuggies and his jhuggi No. was 2 from Janpath side. He further deposed that in the neighbouring Jhuggi, Chunna and Jaswant used to reside and he was residing in the jhuggi adjoining the jhuggi of deceased Jaswant. He further deposed that on 18.07.2020 at about 9:00 a.m., he had left for his work and at about 1:00 p.m., returned for lunch and noticed that Prem Chand was coming from the side of the jhuggi of Jaswant and he had injury on his head and there were blood stains on his clothes. On seeing him, accused got scared and he also got scared to see him. Thereafter, accused fled from the spot and being scared, he also rushed back to his work. He also informed Chunna about what he had seen. He further deposed that in the evening police came and he along with Chunna were taken to PS. He identified his signatures on complaint Ex.PW3/1. He further deposed that police party took them for search of accused Prem Chand and in the meanwhile, they received a call that accused had been apprehended and again they were taken to PS where the saw accused in police custody.

14.1 During cross examination by Ld. Prosecutor, witness denied that at about 1:00 p.m., he had gone to his Jhuggi for lunch and saw accused coming out of jhuggi of Jaswant or that after accused had fled, he went to the jhuggi of Jaswant or he noticed that Jaswant was dead and lying under the palang or that his body had been covered State v. Prem Chand FIR No. 82/2020 PS - Parliament Street by a dari or that after seeing these things, he also fled from the spot or that in the evening he returned and police made enquiries from him and he stated the aforesaid facts in his statement. (Confronted with Ex.PW3/1 where these facts were recorded). Witness correctly identified his signatures on Site Plan Ex.PW3/2. He further stated that he along with police party was searching

for accused and he noticed that accused hiding himself behind a tree and on his pointing out, police apprehended the accused. Witness correctly identified his signatures on arrest memo and personal search memo of accused i.e. Ex.PW3/3 and Ex.PW3/4 respectively. He also identified his signatures on identification memo of dead body of Jaswant Ex.PW3/5.

14.2 The cross examination was conducted by the defence, however nothing came on record to doubt the testimony of the witness or impeach his credit. despite opportunity given.

15. PW-4 SI Richhpal Singh, witness of investigation deposed that on 18.07.2020 at about 12/12:15 p.m., on receipt of DD No. 53A regarding a dead body found in Jhuggis behind National Archives, he along with Ct. Saurav reached at the spot i.e. Jhuggi No. 2 from West Side and found that door of Jhuggi No. 2 was half opened and blood was also coming out from the said jhuggi. He went inside the said jhuggi and saw one dead body of male aged about 40-42 years lying beneath a takhat and his head was protruding out. He also found that in the jhuggi, there were two State v. Prem Chand FIR No. 82/2020 PS - Parliament Street pieces of bricks which had blood and hair on them. On enquiry, they came to know that the occupants of the jhuggi were Santosh and Prem Chand. The gate of the adjoining jhuggi was ajar and on entering, they found that there were glass pieces of a bottle and a blood stained shirt. On enquiries, they came to know that the dead body was of Jaswant. He further deposed that Crime Team was called at the spot, who took the photographs and inspected the scene of crime. He further deposed that he lifted the exhibits from the spot i.e. blood in gauze piece, blood stained earth, two pieces of blood stained bricks having hairs on them and earth control and sealed them separately and seized vide seizure memo Ex.PW11/A. He further deposed that from the adjacent jhuggi No. 1, blood stained pieces of broken glass bottle, blood on gauze blood piece, blood stained piece of ply, dry piece of ply and one blood stained mask of navy blue colour were seized after giving them serial number and sealing them with the seal of 'RS' seized vide seizure memo Ex.PW11/B. Thereafter, body was sent to Mortuary, Dr.RML Hospital through Ct. Saurav for preserving the same. He proved his request letter as Ex.PW4/A. He further deposed that he also went to Dr. RML Hospital and collected MLC of deceased Jaswant. Thereafter, he returned to PS and at about 8:30 - 9:00 p.m., complainant Santosh Kewat came in the PS and his statement Ex.PW3/A was recorded. He prepared Rukka Ex.PW4/B and got the FIR registered. He deposited the exhibits of the case in the State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Malkhana. Thereafter, case was assigned to Inspector Ajay Karan Sharma and he handed over the documents to him. He further deposed that IO prepared the site plan Ex.PW3/2 in his presence and presence of complainant as well.

15.1 He further deposed that he joined the investigation with IO and at about 11:30 a.m., accused was arrested from the park behind Sahstri Bhawan, New Delhi. IO prepared his arrest memo Ex.PW3/3 and conducted his personal search vide memo Ex.PW3/4. Thereafter, accused was brought to PS and during interrogation, his disclosure statement Ex.PW15/A. Pursuant to his disclosure statement, accused led them near the adjacent jhuggi and got recovered one hammer which was used in causing the injury to the deceased. IO measured the same and prepared its sketch Ex.PW15/D and converted into a pulanda and sealed with the seal of 'AKS' and seized the same vide seizure memo Ex.PW15/E. Thereafter, accused led them to place of incident and at his pointing out, IO prepared the pointing out memo Ex.PW15/B. Accused was medically examined. Doctor handed

over the worn cloths of the accused to IO, which were seized vide memo Ex.PW15/C returned to PS. Witness correctly identified the accused as well as case properties i.e. Hammer, clothes of accused as Ex.PW15/P1 and Ex.PW4/P-1 and Ex.PW4/P-2 respectively.

15.2 During cross examination, witness stated that no hammer was found by him at the spot. He further stated that he prepared the State v. Prem Chand FIR No. 82/2020 PS - Parliament Street seizure memos Ex.PW-11/A and Ex.PW11/B with respect to exhibits lifted from the spot and hammer is not mentioned in any of the said exhibits. He further stated that at the time of lifting the exhibits, other police officials and Crime Team were present there.

16. PW-5 Inspector Mahesh Kumar, witness of investigation deposed that on 04.09.2020, SHO Inspector Ajay Karan Sharma called him and he visited the spot and took the rough notes and measurement at the Inspector Ajay Karan Sharma. He further deposed that on the basis of said rough notes and measurement; he prepared scaled site plan Ex.PW5/1 and handed over to IO.

17. PW-6 HC Saurabh Chaudhary, witness of investigation deposed that on 18.07.2020 at about 812:00 - 12:45 p.m., SI Richhpal received a call vide DD No. 53-A (Ex.PW6/A) regarding a dead body lying in the jhuggies behind National Archives. Thereafter, he alongwith SI Richhpal went to the spot and found a dead body lying in the jhuggie behind National Archives. SI Richhpal informed Inspector Ajay Karan Sharma, who along with other police staff also reached at the spot. Names of the deceased known as Justin. Crime Team was also called and on the directions of IO, he took the dead body to RML Hospital and the same was preserved in the mortuary.

18. PW-7 Dr. Sachin Mittal conducted the postmortem on the body of the deceased and deposed that on 22.07.2020, he was posted in Atal Bihari Vajpayee Institute Medical Science (RML Hospital) State v. Prem Chand FIR No. 82/2020 PS - Parliament Street as Medical Officer, Department of Forensic Medicine. One dead body of Jaswant @ Justin received in the hospital and on the request of IO, he along with Dr. Vinod K. N. had conducted the postmortem from 12:25 Noon till 02:10 p.m. He further deposed that on the external examination of the body, he had found the various wounds, abrasion, contusion as mentioned in the external injury column of his report which Ex.C-2. He further deposed that on the internal examination of the body, the head injuries were found as mentioned in head and neck column. The small intestine was distended and contained mucus gases. Covid test was negative. Viscera was preserved and the clothes and articles as mentioned in the report were also seized. The viscera and clothes in sealed condition were handed over to the police along with sample seal. He further deposed that after analyzing the injuries both external and internal, they had opined that this was a case of Cranio Cerebral damage consequent upon blunt force impact to head region as a result of injuries No. 1,2, 3 & 6 which were collectively sufficient to cause death in ordinary of course of nature. Time since death was opined as four days prior to the conducting of postmortem. He proved the report as Ex.C-2.

18.1 Subsequent to Court's question that what is the reason for not mentioning time since death of conducting the postmortem in terms of hours? Why and on what basis the time since death of the postmortem is mentioned in terms of days?. The witness stated that State v. Prem Chand FIR No. 82/2020 PS - Parliament Street in this case the body was preserved in cold storage from 18.07.2020

and the postmortem examination was done on 22.07.2020 as based upon the information provided in the papers body has been kept into cold storage which prevented postmortem changes / decomposition of the body, which occur in the dead body in the natural course when the body is left in open / natural environment, hence the time since death has been given as about 04 days. He further deposed that usually the stomach content / food if present, remains partially digested in the stomach for 03-04 hours (gastric emptying time) which may decrease or increase due to certain food products. However, presence of food in stomach and approximate time since the last meal consume can be used as a reliable indicator to determine the approximate time of death before the conducting the postmortem, even if the dead body is kept in cold storage. 18.2 He further deposed that on 07.01.2023, he gave his specific opinion on the query/request of Inspector Subhash Chand regarding subsequent opinion. He further deposed that after examining the exhibits, he prepared two sketches i.e. Annexure-I Ex.PW7/A & Ex. PW-7/B. He further deposed that FSL Report, PM Report and the MLC were also placed before him and he had gone through the same and gave his opinion that the injuries mentioned in PM Report are possible with the weapon of offence examined by him or with the similar type of weapons. He proved his report of subsequent opinion as Ex.PW-7/C (running into 03 pages).

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street 18.3 During cross examination witness stated that on the basis of information available from the inquest documents, the time of death before the postmortem was mentioned at about four days.

19. PW-8 Dr. Vinod Kumar KN also conducted the postmortem on the body of the deceased and deposed that on 22.07.2020, he along with Dr. Sachin Mittal had conducted the postmortem on the body of deceased Jaswant @ Justin vide PM No. 420/2020 and proved PM Report as Ex.C2.

20. PW-9 Dr. Srishti Chandra, collected blood samples of deceased and deposed that on 19.02.2020, she was posted at RML Hospital and on that day, accused Prem Chand was brought to the hospital for taking his blood sample. Blood sample of Prem Chand were collected, sealed and handed over to the police official.

21. PW-10 SI Puran Ram, Incharge Mobile Crime Team deposed that on 18.07.2020, he was posted as Incharge Mobile Crime Team, New Delhi District and on that day, on receipt of a call, he along with Photographer HC Ravinder and Proficient Ct. Pawan reached at the spot i.e. place of murder i.e. Park near National Archives, Janpath New Delhi. SHO and other police officials were also present there. He further deposed that the photographer clicked the photographs of the scene of crime and they inspected the scene of crime and one dead body was lying there. He proved his report as Ex.PW10/A. State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

22. PW-11 Inspector Devender, witness of investigation deposed that on 18.07.2020, he was posted as Incharge of Police Post Boat Club of PS Parliament Street and on that day he had join investigation of present case along with SI Richhpal and they along with other staff reached at the spot near Janpath Road as well as Rajpath Park behind the National Archive of India where they saw a murder of one Justin/Jaswant had taken place in the Jhuggi situated there. He further deposed that IO/Inspector Ajay Karan Sharma also reached there along with other staff and SI

Richhpal seized the exhibits from the spot i.e. blood in gauze piece, blood stained earth, two pieces of blood stained brick and earth control and converted into pullanda and sealed with the seal of RS and seized vide seizure memo Ex.PW-11/A. He further deposed that Crime Team was also called and from adjacent jhuggi, exhibits were also lifted i.e. pieces of blood stained broken glass, blood in gauze piece, piece of blood stained ply etc. and the same were converted into pullanda which were duly sealed with the seal of 'RS' and seized vide memo Ex.PW-11/B. Thereafter, dead body of deceased was sent to RML Mortuary through Ct. Saurav. On the next day, IO recorded his statement. Witness correctly identified the case property Ex. PW-11/P-1 (collectively), Ex. PW-11/P-2, Ex. PW-11/P-3, Ex. PW-11/P-4 (collectively), Ex. PW-11/P-5, Ex. PW-11/P-6 and Ex. PW-11/P-7.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

23. PW-12 Inspector Manish Chaudhary, witness of investigation deposed that on 18.07.2020, he was posted at PS Parliament Street as SI and on that day at about 04:00 PM, a call was received in the PS that one dead body of a labour has found in a Jhuggi made for labours near National Archive, Janpath, New Delhi. The said call was registered vide GD No. 53A and marked to SI Richhpal for investigation, who went to the spot along with Ct. Saurabh. He further deposed that as the information was serious, he along with SHO Inspector Ajay Karan Sharma, SI Devender In-charge PP Boat Club and other staff also reached the spot where they saw dead body of a male was lying in the jhuggi which were temporary built up by the contractor to accommodate the labours working at the road repairing site near Vijay Chowk and Rajpath. They also noticed that lot of blood was also scattered on the floor inside the jhuggi and there were multiple injuries on the face and head of the deceased. He further deposed that on 22.07.2020, he along with IO Inspector Ajay Karan Sharma went to RML mortuary for the postmortem of deceased Justin @ Jaswant. Before the postmortem dead body of deceased Justin @ Jaswant was identified by Chunna and Santosh Rawat. IO recorded their identification statement and the identification statement of Chunna is as Ex. PW-3/J and Santosh Rawat as Ex.PW-12/A. After postmortem, dead body of deceased Justin was handed over to them vide delivery memo Ex.PW-12/B. He further deposed that on 25.07.2020, he along with IO Inspector State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Ajay Karan Sharma again went to the mortuary of RML Hospital and collected the exhibits which were seized by the doctor at the time of conducting postmortem of deceased Justin @ Jaswant. The same were seized by him vide seizure memo Ex.PW-12/C.

24. PW-13 Inspector Subhash Chand, IO qua filing of supplementary chargesheet deposed that on 22.11.2022, he was posted at PS Parliament Street as Inspector and on that day, weapon of offence i.e. hammer was deposited in Forensic Department, RML Hospital, Delhi for obtaining subsequent opinion with regard to weapon of offence responding to injuries mentioned in PM Report No. 420/2020 of deceased Jaswant @ Justin. He further deposed that on 24.11.2022, he filed supplementary charge-sheet in the Court in respect of FSL Result received from RFSL, Chanakya Puri, Delhi. He further deposed that on 28.11.2022, he sent pieces of bricks i.e. another weapon of offence to Forensic Department, RML. Hospital, Delhi for subsequent opinion and on 20.02.2023, he received subsequent opinion from RML Hospital and the exhibits along with results were deposited in PS Malkhana. Thereafter, he prepared another supplementary charge-sheet and filed

the same in the Court along with relevant reports. He also recorded statements of the relevant witnesses.

25. PW-14 HC Khemchand, witness of investigation deposed that on 22.11.2022, he was posted at PS Parliament Street as Head Constable and on that day, on the direction of Inspector Subhash State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Chand, he had obtained one sealed parcel duly sealed with the seal of 'SRK' from MHC(M) vide RC No. 87/21/22 and the same was deposited at Forensic Department, RML Hospital, Delhi. The pullanda remained intact till it was in his possession and no one had tampered with the same. He had handed over the copy of receipt to the MHC(M).

25.1 He further deposed that on 28.11.2022, he had again obtained one sealed parcel duly sealed with the seal of 'SRK' from MHC(M) vide RC No. 88/21/22 and the same was deposited at Forensic Department, RML Hospital, Delhi. The pullanda remained intact till it was in his possession and no one had tampered with the same. He had handed over the copy of receipt to the MHC(M). He further deposed that on 20.02.2023, he had collected reports along with two sealed pullandas, PM Report and sample seal of the hospital. Lateron, IO recorded his statement.

26. PW-15 Inspector Ajay Karan Sharma, Investigating Officer deposed that on 18.07.2020 at around 04:00 pm, he was posted as SHO, PS Parliament Street and on that information regarding a male dead body lying in a jhuggi near National Archives, Janpath (now Kartawya Path) was received at PS Parliament Street which was lodged vide DD No. 53A. The said DD entry was marked to SI Richhpal Singh, who along with other police personnel reached at the spot. He further deposed that as it was a call regarding a male dead body, he along with SI Devender, IC/PP, Boat Club, SI Manish State v. Prem Chand FIR No. 82/2020 PS - Parliament Street with Senior Officers and other police personnel also reached at the spot and they found that there were two temporary make shift jhuggis made for labours working at the Kartawya Path Site. On the jhuggi towards the East, there was a dead body of a male lying upside down below a cot and partially covered with a mat. The right side of the head was badly injured and lot of blood was lying there. He further deposed that on the spot, two broken pieces of brick having blood and hairs were lying and in the adjoining jhuggi, blood stained broken pieces of glass bottle and blood stained blue coloured mask were also lying. He further deposed that Mobile Crime Team along with Photographer were called at the spot and the place of occurrence was got inspected and photographed by the Crime Team and accordingly, Crime Team handed over the report Ex.PW10/A to him. Thereafter, the dead body of the deceased was shifted to the Mortuary, Dr. RMI. Hospital, Delhi through Ct. Saurav. He further deposed that complainant Santosh also came at the spot and told us about the name of the deceased as 'Justin @ Jaswant' and also told that deceased had a quarrel with Prem Chand, who is also a labour and living in the adjoining jhuggi of deceased. He also told that he had seen coming out Prem Chand from the jhuggi of deceased and when he went inside the jhuggi, he saw deceased had sustained injury and due to which he scared and went away from there. He further deposed that thereafter, they along with the complainant and other police staff reached at the police station State v. Prem Chand FIR No. 82/2020 PS - Parliament Street and where SI Richhpal Singh recorded the statement of the complainant Santosh and FIR was got registered and further investigation of the case was taken by him.

26.1 He further deposed that he along with complainant, SI Richhpal Singh, SI Devender, SI Manish and other police personnel reached the spot. On the pointing out of complainant Santosh, he prepared the rough site plan of the spot Ex.PW-3/2. He further deposed that in late night, accused Prem Chand was apprehended on the pointing out of the complainant from Park behind Shashtri Bhawan. He was interrogated and arrested on 19.07.2020 at about 01:30 am vide arrest memo Ex.PW-3/3 and his personal search was conducted vide memo Ex.PW-3/4 and his disclosure statement Ex.PW-15/A was recorded. He further deposed that accused also pointed out the place of occurrence and he prepared pointing out memo Ex.PW-15/B in this regard. He further deposed that the accused was having head injury at the time of his arrest. He seized his blood stained clothes i.e. shirt and vest (baniyan) and the same were converted into separate pullandas duly sealed with the seal of 'AKS' and seized vide seizure memo Ex.PW-15/C. Thereafter, accused led them to a jhuggi adjacent to jhuggi of deceased and from there, he got recovered one blood stained hammer which he had used at the time of committing murder of deceased Justin @ Jaswant. He measured the said hammer and prepared its sketch Ex.PW-15/D and converted into a pullanda duly sealed with the seal State v. Prem Chand FIR No. 82/2020 PS - Parliament Street of 'AKS' and seized vide seizure memo Ex.PW-15/E. Thereafter, accused was taken to Dr. RML Hospital, Delhi for his medical examination and during his medical examination, his blood sample was preserved and the doctor handed over the same in a sealed envelope along with sample seal of the hospital and he seized the same vide memo Ex.PW-15/F. Thereafter, accused was produced before the court concerned and from there, he was sent to judicial custody. He further deposed that on 22.07.2020, postmortem of the deceased was got conducted at Mortuary, Dr. RML Hospital, Delhi and before postmortem, dead body of the deceased was identified by one Chunna and complainant Santosh Kewat and their statement identification statements Ex.PW-3/J and Ex.PW-12/B were recorded. He further deposed that his request to Autopsy Surgeon for conducting postmortem of deceased is Ex.PW-15/G and he filled up Inquest Form No. 25-35(1)(b) Ex.PW-15/H. He further deposed that after postmortem, dead body of the deceased was handed over to Sh. Santosh and Sh. Chunna vide delivery memo Ex.PW-12/B. He also seized the exhibits vide memo Ex.PW-12/C which were preserved during postmortem of the deceased along with sample seal of the hospital. He further deposed that during postmortem, SI Manish was with him and thereafter, they returned to police station and exhibits were deposited in the malkhana and he recorded the statements of the witnesses under Section 161 CrPC. He further deposed that later on exhibits were sent to RFSL, Chanakya Puri and State v. Prem Chand FIR No. 82/2020 PS - Parliament Street on 04.09.2020, he called Inspector Mahesh Kumar, Draftsman and they went to the spot and he took the rough notes and measurement of the spot and on 01.10.2020, he handed over the scaled site plan Ex.PW5/A to him. After completing the investigation, he filed the challan before the Court. Witness correctly identified the accused as well as case properties.

26.2 During cross examination, witness stated that accused also met him in the intervening night of 18-19.07.2020 in injured condition in the adjacent behind Shastri Bhawan. At that time, he noticed that he had sustained injury on his head and his clothes were also blood stained.

27. PW-16 Dr. Suminder Kaur, FSL Expert deposed that on 18.12.2020, eighteen sealed parcels were received in the office in respect of the present case and the same were marked to me for DNA examination. Upon examination, blood was detected on exhibits 2, 5, 8a, 8b, 10, 11, 12, 13 & 17 and

the rest of the exhibits were directly processed for DNA examination. He further deposed that the DNA profiling (STR analysis) performed on the exhibits is sufficient to conclude that the DNA profile generated from the source of exhibit 13 (blood sample of accused) is similar with the DNA profile generated from the source of exhibit 2 (gauze from SOC), exhibit 11 (shirt) and exhibit 12 (sandoz Baniyan). He further deposed that the DNA profile generated from the source of exhibit 17 (blood on gauze of deceased) is similar with the DNA State v. Prem Chand FIR No. 82/2020 PS - Parliament Street profile generated from the source of exhibit '8a' (dark brick), exhibit '8b' (light brick), exhibit 10 (hammer), exhibit '16a' (right hand nail clippings) and exhibit '16b' (left hand nail clippings). The remnants of the exhibits were sealed with the seal of 'SRK RFSL CH.PURI NEW DELHI'. He proved his detailed report bearing no. RFSL DLH/867/BIO/238/2020 dated 19.02.2021 (running into three pages) as Ex.PW.16/A and Annexures I & II containing the allelic data as Ex.PW-16/B (collectively).

27.1 During cross examination, witness stated that it is true that the DNA could not be isolated from the source of exhibit 1 (blood stained pieces of glass bottle), exhibit 5 (blood stained masks from SOC) and exhibit 9 (earth control).

28. Statement of accused under Section 294 Cr. PC has been recorded wherein he has admitted MLC No. 55350 of deceased Jaswant, his postmortem report No. 420/20 and the FSL Report bearing No. RFSL/DLH/738/CHEM/343/20 dated 24.12.2020

29. Prosecution evidence was closed vide order dated 20.09.2024 on submissions of Ld. Addl. PP for the State that all the prosecution witnesses have been examined.

Statement of accused Under Section 313 Cr.P.C. (Now Section 351 of BNSS)

30. After prosecution evidence was over, on 15.10.2024, accused Prem Chand was examined under Section 313 Cr.PC, wherein he State v. Prem Chand FIR No. 82/2020 PS - Parliament Street reiterated his innocence and deposed that on the date of incident, at about 11:30 a.m., there was an altercation between him and the deceased Jaswant which turned into scuffle and during the said scuffle, deceased pressed his neck with great force due to which it became difficult for him to breathe. Jaswant also hit him on his head with an iron rod. In order to defend himself, he retaliated with a brick. Thereafter, he became unconscious. He wanted to go to the police station but remained indecisive. Finally, in the evening, he went to Police Post Boat Club and told about the incident to them, however, they did not listen to him and falsely implicated in this case.

Defence Evidence

31. In his defence, accused has examined two witnesses Dr. Preeti as DW-1 and Medical Record Clerk Dr. RML Hospital as DW-2 (Though wrongly numbered as DW-1 again).

31.1 DW-1 Dr. Preeti has deposed that on 19.07.2020, while she was working as Senior Resident at Central Jail Hospital, Tihar Jail, Delhi, accused Prem Chand was admitted from 19.07.2020 to 21.08.2020 as he was diagnosed with sub normal intelligence with alcohol dependency syndrome

(ADS). The accused was discharged in a behaviorally stable condition on 21.08.2020. The discharge summary has been proved as Ex.DW-1/A. State v. Prem Chand FIR No. 82/2020 PS - Parliament Street 31.2 DW-2 Ms. Laxmi, Medical Record Clerk, Dr. RML Hospital, New Delhi proved the MLC No. E/121344 dated 19.07.2020 of accused Prem Chand as Ex.DW1/A (Wrongly numbered and be read as DW2/A henceforth).

Final Arguments:

32. The Court has heard the final arguments as advanced by Ms.Manisha Singh, Ld. Addl. P.P. for the State and Sh. B. S. Randhawa, Ld. LAC for accused and has gone through the entire material available on record.

Arguments on behalf of the Prosecution by Ms. Manisha Singh, Ld.Addl. P.P. for the State:

33. At the thresh-hold, it is argued by the Ld. Addl. P.P. for the State that the present matter is based upon the circumstantial evidence and the prosecution has been able to prove on record, the connection of accused with the present crime and his guilt beyond reasonable doubt, with the help of ocular evidence; medical evidence; the scientific evidence in the form of FSL result. Ld. Prosecutor has argued that as per testimonies of prosecution witnesses blood-stained pieces of bricks and hammer used in the commission offence were recovered which were sent to FSL and after DNA profile, the blood sample of deceased matched with the exhibits lifted from the spot as well as with the pieces of bricks and State v. Prem Chand FIR No. 82/2020 PS - Parliament Street hammer. She further argued that as per opinion of the doctor the injuries inflicted upon the deceased are possible with the recovered pieces of bricks and hammer.

33.1 It is further argued by the Ld. Prosecutor that after the incident, accused did not return to his house and could only arrested late night at the instance of complainant. She further argued that the ocular evidence of complainant and the subsequent recovery of weapon of offence as well as scientific evidence form a complete chain of circumstances. Hence, in the present matter, on the basis of circumstantial evidence which completes the chain, proved on record by the prosecution, the accused is proved guilty for the charge. Thus, it is prayed by the Ld. Addl. PP for the State that accused be convicted for offence of committing murder for which he has been charged.

Arguments on behalf of accused Prem Chand

34. It is argued by Ld. LAC for accused that prosecution has not been able to prove its case against the accused as all as there is no eye witness and it is entirely based upon circumstantial evidence. He further argued that no public person was made a witness at the time of alleged recovery of alleged weapon i.e. Hammer, hence, it is planted one. He further argued that the accused has stated in his statement recorded under 313 Cr. P. C that there was a scuffle State v. Prem Chand FIR No. 82/2020 PS - Parliament Street between him and the deceased, and he only exercised his right of private defence.

Appreciation of facts and relevant law:

35. The present case is based on circumstantial evidence. It is established principle of law that a witness may lie but the circumstances do not lie. In the present case, there is no direct eye witness of the alleged incident. The guilt of the accused can only be proved through the circumstantial evidence. The circumstantial evidence has to be appreciated as per the established principles of law laid down by the Hon'ble Supreme Court of India and Hon'ble High Court of Delhi. The standard of proof required for conviction in case of circumstantial evidence is that the circumstances relied upon in support of conviction must be fully established and the chain of evidence proved by the prosecution must be so complete as not to leave any reasonable ground for a conclusion consistent with the innocence of the accused.

36. The Hon'ble Supreme Court of India in case titled as Sharad Bridhichand Sarda Vs. State of Maharashtra cited as (1984) 4 SCC 116 has laid down the five golden Principles for appreciation of circumstantial evidence and has termed the same as Panchsheel of the Proof of Case based on circumstantial evidence. The said 5 golden principles are as follows: -

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

(i) The circumstances from which the conclusion of the guilt is to be drawn should be and not merely 'may be' fully established.

(ii) The facts so established should be consistent only with the hypotheses of the guilt of accused, that is to say, they should not be explainable on any other hypotheses except that the accused is guilty.

(iii) The circumstances should be of conclusive nature and tendency.

(iv) They should exclude every possible hypotheses except the one to be proved.

(v) There must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all probability the act must have been done by the accused.

37. Thus, before recording the conviction of any accused the aforesaid five condition must be satisfied. The prosecution has to establish its case on the basis of aforesaid five golden Principles and to secure conviction of any accused, the prosecution must fulfill the following requirements: -

(i) The circumstances from which the inference of the guilt of the accused is to be drawn must be firmly established.

(ii) The established circumstances must be of such definite tendency that points out towards the guilt of accused.

(iii) The chain of the circumstances must be so complete and there should not be any snap in the chain of circumstances.

(iv) The chain of circumstances must be so complete and incapable of any other hypotheses then that the guilt of the State v. Prem Chand FIR No. 82/2020 PS - Parliament Street accused and same should also be inconsistent with the innocence of the accused and must exclude every other possible hypotheses except with the hypotheses pointing out towards the guilt of the accused.

38. Now coming to the present case, the Prosecution has to prove following circumstances to secure conviction in the present matter for the accused Prem Chand:

- (a) Presence of accused at the spot at the time of offence;
- (b) Death of deceased caused by murder;
- (c) Recovery of weapon of offence at instance of the accused;
- (d) Subsequent conduct of accused including absconding by him;
- (e) Medical and Scientific Evidence to connect the accused with the crime.
- (f) Motive behind the commission of crime;

39. Now it's important to establish every circumstance against the accused to complete the chain, hence discussing each and every circumstance separately in the preceding paragraphs.

40. The first and foremost ingredient which has to be proved by the Prosecution is (a) Presence of accused at the spot at the time of offence. As already stated, the present matter is based only State v. Prem Chand FIR No. 82/2020 PS - Parliament Street circumstantial evidence and there is no direct eye witness available with the prosecution, however, witness of res gestae is available with them being the complainant/PW-3 Santosh, who stated that around the time of incident, he saw the accused coming from the side of the jhuggi of deceased Jaswant and at that time the accused had injury on his head and there were blood stains on his clothes.

On seeing him, the accused got frightened and fled from the spot. 40.1 The accused was arrested on the same night and was medically examined, his MLC has been proved as Ex.DW2/A wherein it has been mentioned that on local examination, there was injury found on frontal area and occipital area of accused. This MLC corroborates the version of PW-3 Santosh, hence, the oral testimony of PW-3 well corroborated with medical evidence. 40.2 Even, the accused has not denied his presence at the spot in his statement recorded under section 313 Cr.P.C and has categorically stated about the scuffle which took place between him and the deceased at the alleged date, time and place. 40.3 In view of ocular evidence of PW-3 Santosh coupled with medical evidence in form of MLC of accused proved as Ex.DW2/A and admission of accused, the presence of accused at the spot at the time of offence, has been duly proved.

41. Now dealing with the second circumstance which is (b) Death of deceased Jaswant @ Justin caused by murder. As per the testimony of police witnesses a GD was received regarding dead State v. Prem Chand FIR No. 82/2020 PS - Parliament Street body and when they reached at the spot, the dead body of deceased was found in his jhuggi underneath of a takht and blood had oozed out from the injuries. Pool of blood was also found scattered at the spot.

41.1 As per the testimony of PW-7 Dr. Sachin Mittal, the following external injuries were observed on the body of deceased during post mortem:

"Multiple lacerated wounds varying in size and having irregular contused margins with some of them showing crushed hair bulbs and tissue bridges in situ at places is seen mentioned as injury no. 1 to 6 below:-

1. Stellate shaped wound of size 7cm x 5cm x bone deep is present over left fronto-parietal region of scalp situated 5 cm above the margin of left eyebrow and 3 cm lateral to midline on left side.

2. Wound of size 5 cm x 1 cm x bone deep is found present over right fronto-parietal region of scalp situated 4 cm above the right eye brow and 7 cm lateral to midline on right side.

3. Wound of size 2.5 cm x 2cm x muscle deep is seen present over right temporal region of scalp situated 2 cm above the right eyebrow and 6 cm above the right tragus of ear.

4. Wound of size 1.5 cm x 0.5 cm x muscle deep is seen present over right zygomatic region situated 3.5 cm in front of right tragus of ear and 4.5 cm lateral to lateral angle of right eye.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

5. Wound of size 1cm x 0.2 cm x skin deep is seen present over right zygomatic region of face situated 1.2 cm behind the injury mentioned as injury no. 04.

6. Wound of size 2.5 cm x 0.3 cm x bone deep present over right occipital region of scalp situated 4 cm above the right mastoid process and 7 cm above the external occipital protuberance.

7. Abraded contusion of size 2 cm x 2cm reddish in colour is seen present over anterior aspect of right thigh situated 16 cm above the right knee joint.

8. Abrasion reddish in colour of size 2.1 cm x 1.2 cm is seen present over lateral aspect of left knee joint situated just lateral to middle of left knee joint."

41.2 PW-7 Dr. Sachin Mittal opined that the cause of death was due to Cranio Cerebral damage consequent upon blunt force impact to head region as a result of injuries No. 1,2, 3 & 6 which were collectively sufficient to cause death in ordinary of course of nature. Time since death was opined as four days prior to the conducting of postmortem.

41.3 In view of oral testimony of police witnesses, documentary evidence of crime team members and medical evidence, it is proved on record that the death of the deceased Jaswant @ Justin was caused by murder.

42. Now discussing the third circumstance i.e. (c) Recovery of weapon of offence and blood stained shirt of accused at instance of State v. Prem Chand FIR No. 82/2020 PS - Parliament Street the accused. At the thresh-hold, it is important to discuss the Law. The Law on the point of recovery is very clear which is reproduced below:

"Section 27 of Indian Evidence Act is an exception to Section 25 and Section 26 of the said act. Section 27 is based on the doctrine of confirmation by subsequent events. The principle under Section 27 of Indian Evidence Act is based on the principle that if any fact is discovered on the basis of disclosure statement of accused, the discovery of said fact is a guarantee that the information given by the accused in his disclosure statement is true. Such information may be confessional or non-inculcating in nature but if any new fact is discovered from such information, it will be considered as a reliable information."

42.1 Accordingly, the fact discovered on the basis of disclosure of statement of accused must be relevant facts. Such information must be given by the person who is accused of an offence and the recovery of article or discovery of fact must be based upon the information given by such accused.

42.2 The Hon'ble Supreme Court of India in Judgment titled as Pawan Kumar @ Monu Mittal vs State Of U.P. & Anr reported in 2015 (7) SCC 148, has held that "The "fact discovered" as envisaged under Section 27 of the Evidence Act embraces the place from which the object was produced and the knowledge of the State v. Prem Chand FIR No. 82/2020 PS - Parliament Street accused as to it, but the information given must relate distinctly to that effect, but information given must relate distinctly to that effect and hence if the accused are denying their role without proper explanation as to the knowledge about the incriminating material recovered on the basis of their statements in police custody, would justify the presumption drawn by the Courts below as to the involvement of the accused in the Crime.

42.3 In the instant case, the weapon of offence i.e. Hammer was recovered at the instance of accused and the recovery memo has been proved as Ex.PW-15/E, as per which the hammer was recovered from the jhuggi adjacent to jhuggi of deceased. 42.4 It is the Law of the land that the recovery of case property at instance of accused is relevant as to the place and his knowledge about the same, as stated above. The place of recovery is the Jhuggi adjacent to jhuggi of deceased which is argued by defence to be open space however, though the said place accessible to public but the articles hidden in the jhuggi cannot be stated to be at open space which are visible and accessible to public at large.

The hiding of the hammer was within the knowledge of accused and has been recovered at his instance. The accused has not tendered any plausible explanation for the same and has generally denied to be planted. Hence, adverse inference is drawn against the accused. 42.5 As per the opinion of PW-7 Dr. Sachin Mittal, the hammer stated to have been recovered at the instance of accused is possibly State v. Prem Chand FIR No. 82/2020 PS - Parliament Street the weapon of offence by which injuries as mentioned in the PM report have been inflicted.

42.6 The hammer was recovered at the instance of accused, the burden to prove its possession shifted to the accused as per Section 106 of the Indian Evidence Act. However, the accused miserably failed to discharge his burden to explain the same. The abovesaid Section is reproduced as under:

'Burden of proving fact especially within knowledge -When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.'

42.7 Accordingly, the present circumstance of recovery of weapon of offence i.e. Hammer at the instance of accused is proved by the prosecution and to be circumstance which shall be read against him.

43. Coming to next circumstance, which is i.e. (d) Subsequent conduct of absconding by the accused. It is well settled proposition of Law that the prosecution may corroborate its case from the conduct of accused also. The previous and subsequent conduct of accused is relevant under Section 8 of Indian Evidence Act. A fact can be proved by the conduct of accused and surrounding circumstances. The conduct of accused in absconding after the commission of offence, in destroying the evidence, behaving in an unnatural way etc. are relevant under Section 8 of Indian Evidence Act.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street 43.1 Hon'ble Supreme Court of India in Judgment titled as Prithipal Singh & Ors. Vs. State of Punjab and Anrs. Cited as (2012) 1 SCC 10 while confirming the conviction of appellant observed as under: -

"Most of the appellants had taken alibi for screening themselves from the offences. However, none of them could establish the same. The courts below have considered this issue elaborately and in order to avoid repetition, we do not want to re- examine the same. However, we would like to clarify that the conduct of accused subsequent to the commission of crime in such a case, may be very relevant. If there is sufficient evidence to show that the accused fabricated some evidence to screen/absolve himself from the offence, such circumstance may point towards his guilt. Such a view stand fortified by judgment of this Court in Anant Chintaman Lagu v. The State of Bombay, AIR 1960 SC 500."

43.2 Now reverting to the present matter, a public witness, who is neighbour of the deceased as well as accused, has been examined by the prosecution as PW-3 Sh. Santosh has deposed specifically on

Oath that on the day of incident, when he returned to his jhuggi adjacent to the jhuggi of deceased for lunch, he saw the accused coming from the side of the jhuggi of deceased Jaswant and accused was having head injury and his cloths were having blood stains. He further deposed that on seeing each other, they got scared and accused fled from the spot and he also rushed back to his work.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street 43.3 PW-3 is a material witness who has seen accused coming out of the spot soon after the incident with injury on his head which has been corroborated by medical evidence and the accused is stated to have got scared/frightened on seeing the witness/PW-3 while coming out of the spot/jhuggi.

43.4 Even, the accused did not return to his house after the incident which was the adjacent jhuggi to the spot, where police arrived after the incident but accused was not found there. The accused was apprehended on the intervening night of the alleged incident i.e. 19.07.2020 at about 1:30 a.m. at the instance of complainant PW-3 Santosh, from the park behind Shastri Bhawan, New Delhi while the accused was hiding behind the tree. The subsequent conduct of the accused coming out from the spot without any plausible explanation, getting frightened on seeing PW-3 and absconding after the incident also strengthens the chain of circumstances as putforth by the prosecution.

44. Discussing the next circumstance i.e. (e) Medical and Scientific Evidence to connect the accused with the crime . First dealing with the medical evidence which is against the accused is that as per PW-7 Dr. Sachin Mittal, the deceased has been murdered by multiple blows on vital parts of the body and the said injuries correspond with the bricks recovered from the spot and Hammer recovered at the instance of accused as the weapon of offence.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street 44.1 The weapon of offence which is pieces of bricks, recovered from the spot and Hammer, recovered at the instance of accused, were sent to FSL. As per FSL result proved as Ex.PW-16/A, on the said pieces of bricks and the hammer received as '8a' (dark brick), exhibit '8b' (light brick) and exhibit 10 (hammer), blood of the deceased was detected on the said pieces of bricks and Hammer, as per Biological examination. Further, as per DNA examination, the alleles from the source of Exhibit '8a', '8b', 10, '16a' and '16b' are accounted in the alleles from the source of exhibit '17' (blood gauze of deceased), which reveals that the blood of the deceased was found on the pieces of bricks and hammer.

44.2 At this juncture, reliance is placed by this court in Kamti Devi (Smt.) and Anr. Vs. Poshi Ram reported in (2001) 5 SCC 311, wherein the Hon'ble Apex Court has held that "The result of a genuine DNA test is said to be scientifically accurate."

44.3 The same view has been reiterated by the Hon'ble Apex Court in Santosh Kumar Singh Vs. State through CBI, CrI. Appeal No. 87/2007, decided on 06.10.2010 and held that "We must, therefore, accept the DNA report as being scientifically accurate and an exact science as held by this court in Kamti Devi (Smt.) and anr. Vs. Poshi Ram."

44.4 Accordingly, this circumstance is also proved against the accused.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street

45. Now discussing the last circumstance to be proved to complete the chain of circumstances which is (i) Motive behind the commission of crime. Motive is relevant under Section 8 of the Indian Evidence Act. Motive is the moves a man to do a particular work. Generally, there can be no action without any motive. Under Section 8 of Evidence Act, several factors including preparation, previous threat, previous altercation, previous litigation between the accused and the victim becomes relevant.

45.1 The mere existence of motive is by itself is not an incriminating circumstance. Motive cannot be a substitute of proof however it is a corroborating factor in proving the case of the prosecution. The motive for the commission of offence is of vital importance in a criminal trial and in cases based on circumstantial evidence motive itself will be a circumstance which the Court has to consider deeply. The existence of motive which operates in the mind of perpetrator may not be known to others and hence it has to be inferred from the facts and circumstances of this case. 45.2 Hon'ble Supreme Court of India in judgment titled as Sheo Shankar Singh Vs. State of Jharkhand and Anr cited as (2011) 3 SCC 654 observed as under:

"15. The legal position regarding proof of motive as an essential requirement for bringing home the guilt of accused is fairly well settle by a long line of decision of this Court. These decisions have made a clear distinction between cases where the prosecution relies upon the circumstantial evidence on one State v. Prem Chand FIR No. 82/2020 PS - Parliament Street hand and those were relying upon the testimonies of the eye witnesses on the other. In the former category of cases proof of motive is given the importance it deserves, for proof of motive itself constitutes a link in the chain of circumstances upon which the prosecution may rely. Proof of motive, however, recedes into background in cases where the prosecution relies upon and eye witness account of the occurrence. That is because if the Court upon a proper appraisal of the deposition of the eye witnesses comes to the conclusion that the version given by them is credible, absence of evidence to prove the motive is rendered inconsequential. Conversely, even if the prosecution succeeds in establishing a strong motive for the commission of the offence, but the evidence of the eye witnesses is found unreliable or unworthy of credit, existence of motive does not by itself provide a safe basis for convicting the accused. That does not, however, mean that proof of motive even in a case which rests on an eye witness account does not lend strength to the prosecution case or fortify the Court in its ultimate conclusion proof of motive in such a situation certainly helps the prosecution and supports the eye witnesses."

45.3 Reverting to the present matter, the background of the present matter is that the deceased Jaswant @ Justin and accused were working as labourer and on the day of incident, they had consumed liquor together and a scuffle took place between them during which both sustained injuries and accused gave multiple blows of bricks State v. Prem Chand FIR No. 82/2020 PS - Parliament Street and hammer on the vital body parts of the deceased including head which resulted into his death.

45.4 The accused in his statement u/s 313 of Cr.P.C. admitted his scuffle with deceased, however, he denied the allegations leveled against him while stating that the deceased pressed his neck with such a great force that he was unable to breathe. The deceased also hit him on his head with iron rod and in retaliation, he defended himself with a brick and became unconscious thereafter. 45.5 However, firstly, no iron rod was recovered from the spot by the investigating agency or crime team which creates doubt upon the version of the accused for invoking his right of private defence. Secondly, his medical examination on the same day does not corroborate his version of being hit by an iron rod since his MLC only states about laceration on frontal and parietal area. Thirdly, admittedly, he acceded his right of private defence, if at all was available to him in the alleged set of circumstances, since hammer was also used besides the bricks to hit the deceased, which proved fatal.

45.6 In these set of circumstances as put forth by the prosecution as well as defence, the motive to commit the alleged offence is clearly proved to have been the scuffle between the deceased and accused at the time, date and place of incident.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Explanation by the accused about the aforesaid circumstances against him.

46. The accused while recording his statement under Section 313 Cr. PC has putforth the right of private defence available to him against the deceased who hit him on his head with an iron rod and in retaliation, he had assaulted him with brick. As already stated, the iron rod was neither recovered from the spot nor seen by PW-3 while the accused was coming out of the spot. The accused is even silent about the hammer being used in the commission of offence, which has been recovered at his instance and opined to have been possibly used in the commission of murder of deceased which corresponds with the injuries sustained by the deceased. Even his MLC does not reflect any grievous injury being sustained by him and right to private defence extends to causing death under apprehension of death, grievous injury, sexual assault, kidnapping/abduction and unlawful confinement etc. as per Section 100 IPC. Hence, no right to private defence extending to cause death of any person was available to the accused. Rather the circumstances, proved on record does not give him any benefit of right of private defence being used at all.

47. Ld. LAC has also relied upon the hospital discharge summary as DW-1/A showing that the accused in fit of rage while saving himself assaulted the deceased since his medical condition was not fit. However, as per discharge summary of Central Jail Hospital, State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Tihar Jail, Delhi, proved as Ex.DW1/A, the accused was diagnosed with sub normal intelligence with alcohol dependency syndrome which only proves his addiction to alcohol and nothing relates to his unsound mind.

Final analysis:

48. It is a fundamental doctrine of criminal law that the onus to prove its case lies on the prosecution. Thus, in a criminal trial, the onus to prove the commission of offence by the accused is always upon the prosecution and the same never shifts upon the accused. The prosecution has to establish before the Court that the accused persons had committed the offence beyond shadow of all

reasonable doubts.

49. In *G. Parshwanath Vs. State of Karnataka* reported in (2010) 8 SCC 593, the Supreme Court of India made the following observations when considering a case hinging on circumstantial evidence:

"23. In cases where evidence is of a circumstantial nature, the circumstances from which the conclusion of guilt is to be drawn should, in the first instance, be fully established. Each fact sought to be relied upon must be proved individually. However, in applying this principle a distinction must be made between facts called primary or basic on the one hand and inference of facts to be drawn from them on the other. In regard to proof of primary facts, the court has to judge the evidence and decide *State v. Prem Chand* FIR No. 82/2020 PS - Parliament Street whether that evidence proves a particular fact and if that fact is proved, the question whether that fact leads to an inference of guilt of the accused person should be considered. In dealing with this aspect of the problem, the doctrine of benefit of doubt applies. Although there should not be any missing links in the case, yet it is not essential that each of the links must appear on the surface of the evidence adduced and some of these links may have to be inferred from the proved facts. In drawing these inferences, the court must have regard to the common course of natural events and to human conduct and their relations to the facts of the particular case. The Court thereafter has to consider the effect of proved facts. In deciding the sufficiency of the circumstantial evidence for the purpose of conviction, the court has to consider the total cumulative effect of all the proved facts, each one of which reinforces the conclusion of guilt and if the combined effect of all these facts taken together is conclusive in establishing the guilt of the accused, the conviction would be justified even though it may be that one or more of these facts by itself or themselves is/are not decisive. The facts established should be consistent only with the hypothesis of the guilt of the accused and should exclude every hypothesis except the one sought to be proved. But this does not mean that before the prosecution can succeed in a case resting upon circumstantial evidence alone, it must exclude each and every hypothesis suggested by the accused, howsoever, extravagant and fanciful it might be. There must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and *State v. Prem Chand* FIR No. 82/2020 PS - Parliament Street must show that in all human probability the act must have been done by the accused, where various links in chain are in themselves complete, then the false plea or false defence may be called into aid only to lend assurance to the court."

50. In the present case, the prosecution has been able to prove the complicity of accused Prem Chand in the commission of crime beyond shadow of all reasonable doubts as all the circumstances established are consistent only with the hypothesis of guilt of accused and the entire chain of circumstantial evidence is complete in all respects and no reasonable doubt is left which can lead to the conclusion of innocence of the accused persons and no other hypothesis is possible in the given circumstances. The prosecution has been able to prove all the ingredients of the offences for which

accused have been charged and has faced trial.

51. Thus, keeping in view the deposition of the independent witnesses which had remained coherent, reliable and trustworthy, the forensic evidence, the medical evidence, the recovery of articles at the instance of accused, postmortem report of the deceased, it is held that the prosecution has been able to complete the chain of circumstances and has proved beyond shadow of all reasonable doubts that accused Prem Chand committed the murder of deceased Jaswant @ Justin.

State v. Prem Chand FIR No. 82/2020 PS - Parliament Street Conclusion:

52. In view of above discussions & findings, accused Prem Chand is hereby held guilty and accordingly, convicted for the commission of the offences punishable under Section 302 IPC

53. Copy of the judgment be provided to the convict free of cost against due endorsement. The judgment be also uploaded on the official website during course of the day.

54. Let he be heard separately on the point of sentence.

SHEFALI by SHEFALI BARNALA BARNALA TANDON TANDON Date: 2025.12.05 17:30:10 +0530 Pronounced in the open (Shefali Barnala Tandon) Court on 05.12.2025 Additional Sessions Judge -06, New Delhi District, Patiala House Court New Delhi (It is to certify that all 47 Pages of the judgment are duly signed.) SHEFALI by SHEFALI BARNALA BARNALA TANDON TANDON Date: 2025.12.05 17:30:14 +0530 (Shefali Barnala Tandon) Additional Sessions Judge -06, New Delhi District, Patiala House Court New Delhi State v. Prem Chand FIR No. 82/2020 PS - Parliament Street